



March 24, 2023

VIA E-MAIL

Mr. Martin H. Laws, AICP
Planning Division Manager
Code Compliance and Public Information Team
Boulder County Community Planning & Permitting Department
mlaws@bouldercounty.org

RE: Response to Request for Information Through a Letter of Disclosure –
5314 Ute Highway

Dear Mr. Laws:

We acknowledge receipt of your Letter of Disclosure Request, dated February 7, 2023 (the “Request”), referencing a complaint received on January 20, 2023, “alleging that the nonconforming use at 5314 Ute Highway (Parcel # 120329400011) (the ‘Cement Plant’) has terminated because of increased truck traffic and new stockpiling of shale and other material.” While we have not received a copy of the complaint, nor seen it posted on the County’s Code Enforcement web page for Record ZON-23-0011, we would like to respond to your Request for the following information:

1. The amount of use-related truck traffic on and off the site;
2. The amount and type of material transported; and
3. The type of material stockpiled at the site.

As a preliminary matter, we would like to note that the pre-existing, nonconforming use of the Cement Plant has been and continues to be a facility for the manufacture and distribution of cement, the corollary activities of which have always fluctuated due to numerous factors, including economic cycles, sources of constituent materials and the demand of customers. The Cement Plant has received raw materials via truck over its years of operation, including when the material was sourced from the Lyons Quarry adjacent to the Cement Plant, and continues to do so from various sources.

The Cement Plant has kept counts of inbound and outbound truck trips since 2019, a summary table of which is attached in response to Item #1 above. The numbers reflect the fluctuations in seasons and demand over the year. No single month since the closure of Dowe Flats in September 2022 has exceeded past months’ aggregate truck trips. For example, the number of truck trips from November 2022 (2,355) is less than both November 2021 (2,643) and November 2020 (3,031). Likewise, December 2021 (2,436) exceeds December 2022 (1,994) and January 2021 (1,766) and January 2022 (1,821) each exceeds January 2023 (1,648) in the aggregate number of trips into and out of the Cement

Plant. The January complaint's assertion that the truck trips at the Cement Plant have increased is not supported by the numbers we have logged.

In response to Item #2, the types of material transported in and out of the Cement Plant are the following:

Lyons Truck Shipments*

Product	Inbound/Outbound	2020	2021	2022
Portland Cement	Outbound	402,134	334,365	380,155
Cement Kiln Dust	Outbound	7,294	19,913	21,417
Limestone	Inbound	334,354	287,823	251,451
Shale	Inbound	0	3,092	20,440
Bauxite	Inbound	4,452	1,131	0
Calcium Chloride	Inbound	214	125	57
Ammonium	Inbound	553	551	838
Diesel	Inbound	209,904	228,454	287,767
Gasoline	Inbound	24,598	29,347	34,437
Grinding Aid	Inbound	89	61	112
Iron	Inbound	504	0	0
Gypsum	Inbound	19,064	18,196	16,205
Sandstone	Inbound	0	0	12,209

*Units for diesel and gasoline in gallons; all other products in short tons.

Volumes transported were greatest in 2020, and have varied by product in the last three years. Although we believe the information in the foregoing table, as well as the attached truck trip data, is generally accurate, it is difficult to compile the information to 100% accuracy and in no way establishes any ceiling to the volumes or number of trucks that may have been or may be brought into the Cement Plant in any other period.

In response to Item #3, the materials stockpiled at the site include (and have always included):

- Limestone
- Bauxite
- Sandstone
- Shale
- Iron
- Gypsum
- Coal

The following aerial photo from July 1, 2004, shows the materials as they have been stockpiled at the Cement Plant basically throughout its operation.

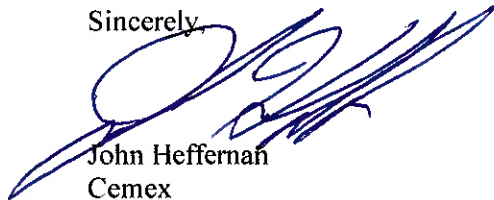


The amount of raw materials stockpiled at the Cement Plant has always varied over time, again in response to various factors including economic cycles, customer demand and chemistry of the materials for cement production. The plant constantly adjusts the position and shapes of the stockpiles to optimize logistical accessibility and traffic flow, and to keep the area safe.

We hope this information is responsive to your request. Please also note that, in the case of any future determination by your office that the pre-existing non-conforming use of the Cement Plant has been improperly enlarged, Cemex reserves the right to present additional evidence concerning historical uses of the Cement Plant throughout the period since the County downzoned this site.

Please let us know if you require any additional information or documentation for the Request.

Sincerely,



John Heffernan
Cemex

Attachment: Table of Inbound & Outbound Truck Trips – Lyons Cement Plant

Inbound and Outbound Truck Trip Counts – Lyons Cement Plant**

	Inbound	Outbound	Total		Inbound	Outbound	Total
2019		12671		2021	9838	13439	23277
Jan	data unavail	805		Jan	757	1009	1766
Feb	22	841	863	Feb	449	846	1295
Mar	276	808	1084	Mar	524	1057	1581
Apr	916	1149	2065	Apr	398	1031	1429
May	1140	939	2079	May	493	1114	1607
Jun	1029	1098	2127	Jun	841	1099	1940
Jul	416	1039	1455	Jul	852	933	1785
Aug	655	1339	1994	Aug	750	1350	2100
Sep	716	1246	1962	Sep	873	1720	2593
Oct	699	1329	2028	Oct	956	1146	2102
Nov	579	1114	1693	Nov	1435	1208	2643
Dec	270	964	1234	Dec	1510	926	2436
2020	12966	15515	28481	2022	9324	15336	24660
Jan	546	1006	1552	Jan	1155	666	1821
Feb	447	576	1023	Feb	895	699	1594
Mar	1206	1114	2320	Mar	573	1091	1664
Apr	1043	1362	2405	Apr	144	1507	1651
May	521	1426	1947	May	310	1156	1466
Jun	982	1511	2493	Jun	421	1539	1960
Jul	1404	1584	2988	Jul	510	1593	2103
Aug	1521	1545	3066	Aug	719	1884	2603
Sep	1394	1499	2893	Sep	826	1652	2478
Oct	1753	1519	3272	Oct	1345	1626	2971
Nov	1695	1336	3031	Nov	1346	1009	2355
Dec	454	1037	1491	Dec	1080	914	1994
				2023			
				Jan	946	702	1648

**Data excludes automobiles and delivery vehicles for mail, packages and equipment.